

FILED BY:

TENTATIVE RULING:

Counsel to appear (by zoom is sufficient). For good cause, appearance of the claimant and the guardian ad litem is waived.

19. 9:00 AM CASE NUMBER: MSC20-01863

CASE NAME: JACKSON VS ANOVA CENTER

***HEARING ON MOTION IN RE: (REDACTED) SEAL AND POINTS AND AUTHORITES IN SUPPORT OF MOTION TO SEAL**

FILED BY:

TENTATIVE RULING:

Parties to appear (by zoom is sufficient).

20. 9:00 AM CASE NUMBER: MSC20-01963

CASE NAME: NORA CHAVEZ VS GAWFCO ENTERPRISES

***HEARING ON MOTION IN RE: ORDER DIRECTING COMPLIANCE WITH BELAIRE WEST NOTICE PROCESS**

FILED BY: CHAVEZ, NORA

TENTATIVE RULING:

Plaintiff moves for an order compelling defendant to comply with the Belaire-West notice process. Defendant opposes on the ground that such disclosure is precluded by the California Consumer Privacy Act of 2018 and the California Privacy Rights Act of 2020. Defendant further contends that the “opt-out” process should be changed to an “opt-in” process.

The CCPA does not preclude use of the *Belaire-West* notice process, because compliance with court-ordered discovery, at a minimum, constitutes “defending legal claims.” (Civil Code § 1798.145(a)(1)(E).)

Moreover, in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 553, the court noted that while home contact information “is generally considered private, the second *Hill* requirement that a reasonable expectation of private in the particular circumstances is not met.” It added that “[w]e doubt Williams’s fellow employees would expect that information to be withheld from a plaintiff seeking to prove labor law violations committed against them and to recover civil penalties on their behalf.” (*Id.*)

As to converting the “opt-out” process to an “opt-in” process, in *Williams* the Supreme Court specifically approved of the “opt-out” process. It stated that “the *Belaire-West* trial court was correct to order disclosure, subject to employees being given notice of the action, assurance that they were under no obligation to talk to plaintiffs’ counsel, and an opportunity to opt out of disclosure by returning an enclosed postcard.” (*Id.*)

Plaintiff’s motion is granted.

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

21. 9:00 AM CASE NUMBER: MSC21-01583

CASE NAME: CASTILLO VS. CUPERTINO ELECTRIC

HEARING IN RE: MOTION FOR SUMMARY JUDGMENT SET BY THE COURTROOM BY STIPULATION OF PARTIES (COUNSEL TO SUBMIT MOTION VIA E-FILE)

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Cupertino Electric Inc. and Jose Alfredo Fuentes Vargas' Motion for Summary Adjudication.

For the following reasons, Defendant's MSA is **denied** as discussed below.

Overview of Allegations and Issues

This matter pertains to an automobile accident that occurred on August 14, 2019. On that date, it is alleged that Defendants caused their motor vehicle to collide with Plaintiff's vehicle, causing him severe injury. It is alleged that the injuries sustained in the accident directly led to Plaintiff being forced to accept early medical disability retirement.

Plaintiff is a Marine who enlisted in August 2008. He was deployed to the Middle East between 2008 and 2015. He suffered several injuries during those deployments, none of which were deemed serious enough to warrant early medical disability retirement. Plaintiff was on Special Duty assignment in San Francisco from 2016 to 2019. It was during this assignment that he was involved in the automobile accident at issue in this suit.

At the time of the accident, Plaintiff had approximately eleven years of service. If Plaintiff had been able to serve a full 20 years, he would have been eligible to receive retirement pay based on his rank and time served. Plaintiff had every intention of staying enlisted in the Marines until at least his 20-year anniversary to be eligible for such benefits. The only reason he did not fulfill the 20 years was due to his early forced disability retirement.

For purposes of this motion, the above is undisputed. The issue before the Court is limited to the interplay of the disability benefits Plaintiff currently receives and the retirement benefits he contends he would have received if he completed his 20 years. Defendants argue that Plaintiff's recovery should be limited to the difference between the regular pension he would have received and the disability person he is currently receiving.

Plaintiff argues that if he was able to complete his 20 years of service he would be entitled to **both** retirement pay and his disability compensation. As such, Defendants should not be able to get a credit for the amount of his disability compensation.

Standard for Summary Adjudication

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit...." (California Code of Civil Procedure ("CCP") § 437c (f)(1).) A "party may move for summary adjudication of a legal issue or a claim for damages other than punitive that does not completely dispose of a cause of action, affirmative defense, or issue of duty," with the Court's approval.

On September 4, 2025, the Court granted the Parties' request to summarily adjudicate the collateral source issue regarding disability benefits.

A defendant "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (CCP § 437c (p)(2).) Once the defendant "has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or defense thereto." (*Ibid.*) The plaintiff "shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (*Ibid.*)

Initial Considerations

Electronic Bookmarks

"[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff's filing includes six exhibits spanning approximately 60 pages which are untitled, not attached to a declaration or other document, and do not include electronic bookmarks at all, much less ones that "briefly describe the exhibit." The Declaration of William Bogdan purportedly attaches two exhibits, yet no electronic bookmarks are included for those exhibits.

Failure to include this required information increased the Court's workload. Counsel is reminded to comply with the Rules of Court going forward.

Missing Exhibits

The Declaration of William Bogdan indicates that two exhibits are attached, a copy of the complaint (Ex. A) and excerpts from the deposition of Andrew Castillo (Ex. B). The Court's version of the document does not contain Exhibit B, *i.e.* no deposition exhibits are included. It is unclear what excerpts were meant to be attached as the Opposition papers do not reference any deposition citations. As the deposition excerpts do not appear to be material to the opposition, the Court will rule on the motion as filed.

Opposition Separate Statement

Plaintiff did file his own Statement of Undisputed Facts which includes 25 additional facts of his own. There are a few problems with the Separate Statement. First, it does not include a response to Defendant's Separate Statement. Including an opposition to the Separate Statement is required under the Code. (CCP 437c (b)(3).) In fact, failure to provide one "may provide a sufficient ground, in the court's discretion, for granting the motion." (*Ibid.*)

Second, as to Plaintiff's purported material facts, "[e]ach material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence." (Cal. Code Civ. Proc. § 437c (b)(3).) Only the first four of Plaintiff's purported facts include citations to evidence. As the others do not include citations to evidence, they are not properly established and will not be considered by the Court.

Amended Separate Statement

On Reply, Defendants indicate that while Plaintiff filed his opposition papers on January 9, he did not

serve them until January 12 due to computer problems. They also noted that the service on January 12 was “followed by service of an amended separate statement on January 14.” The Court notes that while an amended separate statement may have been served on January 14, no such document was filed with the Court. **[The Court reached out to receive a copy of the document but was not provided with one prior to the drafting of this tentative ruling.]**

Sur-Reply

On January 1, 2026, Plaintiff filed a “Sur-Reply to Defendants’ Reply....” California Code of Civil Procedure section 437c – which governs summary judgment/adjudication motions – provides for an opening motion, opposition, and reply. There is no allowance for a ‘sur-reply.’ (Cal. Code Civ. Proc. 437c (b).) In addition, there is no provision in the Code of Civil Procedure, generally, for the filing of a ‘sur-reply’ (no matter how titled). The decision whether to consider such papers is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.) The Court declines to exercise such discretion and will not consider Plaintiff’s Sur-Reply as he failed to seek leave of Court to file such a document.

Analysis

Defendants argue that the collateral source rule does not bar evidence of Plaintiff’s disability payments in connection with his damages claims, relying on the holding in *Rotolo Chevrolet v. Superior Court* (2003) 105 Cal.App.4th 242.

In *Rotolo*, the plaintiff was injured on the job and compelled to retire from his position as a fire captain due to his injuries. (*Id.* at 244.) Plaintiff sought to introduce evidence of the amount of *regular* retirement benefits that he lost due to his premature retirement. (*Ibid.*) Defendants sought to introduce evidence of the amount of *disability* retirement benefits that Plaintiff had and would receive – which would be used to offset the amount he expected to receive in *regular* retirement. (*Ibid.*) Plaintiff sought to exclude that evidence.

The *Rotolo* court noted that plaintiff’s expert testified he would have received approximately \$873,000 in retirement benefits, and that he sought to claim that amount in damages. Defendants opposed the motion, pointing out that the expert also testified that plaintiff expected to receive approximately \$842,000 in *disability* retirement pay. As such, plaintiff would actually only suffer a new loss of about \$31,000.

The trial court excluded the evidence under the ‘collateral source rule.’ “Simply stated the rule is that ‘if an injured party receives some compensation for his injuries from a source wholly independent of the tortfeasor, such payment should not be deducted from the damages which the plaintiff would otherwise collect from the tortfeasor.’” (*Id.* at 245.) The doctrine “covers payments such as pensions paid to a plaintiff who, as a result of his injuries, can no longer work.” (*Ibid.*)

The Court of Appeal reversed. The Court noted that the introduction of the *disability* payments were not admissible to offset the amount plaintiff would have received for work he would have performed but for his injuries. As explained:

With respect to his lost earnings, the pension benefits clearly are a collateral source and cannot reduce Staudt's damages. If Staudt provides evidence that he would have worked for five more years at an average salary of \$60,000 per year, he will be

entitled to damages in the total sum of \$300,000 despite the fact that he is receiving pension benefits. Here, there is no dispute

The fact that plaintiff would receive a ‘double recovery’ due to the collateral source doctrine “has not been deemed significant,” and thus applies to the above situation. The double-recovery begins

The problem, the Court noted, was that if defendants were not allowed to introduce evidence of the *disability* benefits plaintiff received, he would receive a triple recovery: (1) his lost wages, (2) additional damages based on his lost *regular* retirement benefits, and (3) his actual disability retirement benefits. (*Id.* at 246.)

As summarized by the Court:

[T]he basic consequence of [defendant]’s alleged tortious conduct was that Staudt could no longer work and had to retire. He therefore received retirement benefits which constitute a collateral source of compensation, and [defendant] may not offset these benefits against Staudt’s lost earnings damages. But a pension is a pension is a pension, and Staudt is not entitled to characterize the disability pension payments he receives from his employer as a collateral source replacing regular pension payments that he would have received from his employer.

As the Court explained, plaintiff “could not receive both a disability pension and a regular pension, so there is no justification for allowing him to claim that he has been ‘damaged’ by the loss of his regular pension when he is actually receiving the disability payments.” (*Id.* at 247.)

Plaintiff argues that *Rotolo* is distinguishable because here, Plaintiff would be eligible to receive both regular retirement pay (after 20 years) as well as his disability pay. Plaintiff outlines the structure used for military benefits, which he claims is different from the structure of benefits addressed in *Rotolo*.

Military Benefits

A member of the Army (including the Marines – see 10 U.S.C. § 7001) who has at least 20 years of service may, upon his request, be retired. (10 U.S.C. § 7314 – **NOTE:** Plaintiff cites to 10 USC 3914, however, the statute was recodified in 2018 and renumbered.) Generally, a member of the armed services is not eligible for retirement pay before the 20-year mark.

Thus, at the time of the accident at issue, it is undisputed that Plaintiff was not eligible for retirement as he had only been enlisted for approximately 12 years. As Plaintiff makes clear, he would have been eligible for retirement in 2028 – when he hit his 20-year anniversary.

Plaintiff argues that but for the accident, he would have remained active through at least his 20-year anniversary and at that time been eligible for retirement. He also contends that he would also be eligible for *disability* pay due to the injuries he sustained during his deployments – prior to the accident at issue.

Plaintiff acknowledges that a service member is generally prohibited from receiving both military retirement pay and an award of disability compensation. (38 U.S.C. § 5304; *Rosinski v. Wilkie* (2020) 32 Vet.App. 264, 271.) As argued by Plaintiff: “But two programs now provide for **concurrent receipt**

of repayment of waived retired pay,” citing 10 U.S.C. §§ 1413a-1414. (Opp. at 8:5-8 emphasis in original.)

Plaintiff continues: “Concurrent retirement and disability pay (CRDP) is a program allowing qualifying disabled veterans to received VA disability pay and providing for receipt of full retirement for all qualified disabled veterans. 10 U.S.C. § 1414(a).” Section 1414 (a)(1) provides, in relevant part, that “a member ... who is entitled ... to retired pay and who is also entitled ... to veterans’ disability compensation for a qualifying service-connected disability ... is entitled to be paid both ... without regard to sections 5304 and 5305 of title 38.”

“Read together, sections 5304 and 1414 establish that a veteran who obtains a disability rating of 50 percent or greater has a *qualifying service-connected disability* and thus is not subject to 5304’s prohibition against receiving both retirement pay and disability compensation and need not waive the former.” (*Rosinski*, supra, 32 Vet.App. at 272.) In other words, in the military, a person may be able to collect both retirement pay as well as disability pay under certain circumstances.

On Reply, Defendants do not address this factual distinction that under the military procedures a party is entitled to both retirement pay as well as disability pay (under certain circumstances). The main basis for the ruling in *Rotolo* was that plaintiff there “could not receive both a disability pension and a regular pension....” (*Rotolo*, supra, 105 Cal.App.4th at 247.) As such, there was “no justification for allowing him to claim that he has been ‘damaged’ by the loss of his regular pension when he is actually receiving the disability payments.” (*Ibid.*)

The current matter is materially different. Plaintiff has shown that under the military retirement/disability structure, parties are allowed to collect both a retirement payment as well as a disability payment. As such, if Plaintiff can establish that he is entitled to disability pay under the relevant code sections and would have been eligible for retirement pay after 20 years of service, the rationale of *Rotolo* does not apply and Defendant would not be able to submit evidence of Plaintiff’s disability pay to offset what he would receive in retirement pay.

Summary and Conclusion

The parties’ stipulation to continue the trial indication that the “Parties will submit the legal issue of whether the benefits are a collateral source to Law & Motion, reserving any factual questions regarding entitlement to benefits for trial if necessary.”

The Court’s determination above is limited to the finding that under the relevant law relating to military retirement, Plaintiff would be, under certain circumstances, entitled to both his retirement pay (after 20 years of service) as well as his disability pay. As such, evidence of his receipt of disability pay is not admissible for the purpose of offsetting any amounts he would have received in retirement pay.

Plaintiff will still need to meet his burden to show that (1) he would be entitled to disability pay but for the accident at issue in this matter; (2) the amount of that disability pay based on the injuries he sustained prior to and not including the subject accident; and (3) the amount of his retirement pay at the 20-year mark.

Defendant's motion for summary adjudication is **denied** as outlined above.

Evidentiary Issues

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

22. 9:00 AM CASE NUMBER: MSC21-01668

CASE NAME: ANGELICA CUIEL VS. PRIVIA HEALTH GROUP, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS AND PAGA SET BY THE COURTROOM
FILED BY:**

TENTATIVE RULING:

Plaintiffs Angelica Curiel, Teresa Avila, Kira Chambers, and Christina Romay move for final approval of their class action and PAGA settlement with defendants Privia Health Group, Inc., Bass Medical Group, and Bass Privia Management Company of California.

A. Background and Settlement Terms

The original complaint was filed by plaintiff Curiel on August 4, 2021, raising class action claims against Bass Medical Group on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. On May 25, 2022, Chambers filed a similar action in this court (No. C22-01058). On November 29, 2022, the actions were consolidated. On April 15, 2024, plaintiffs filed a first amended class action complaint under PAGA (based on notices provided by the plaintiffs).

The settlement was first proposed for preliminary approval before Judge Treat in August of 2024. He declined to approve it as submitted, finding that there was insufficient discussion of the value of the claims, that the class included both independent contractors and employees, and that all non-exempt hourly employees would be lumped together with Bass employees.

The settlement was revised and plaintiffs filed a renewed motion, which was granted.

The settlement would create a gross settlement fund of \$5.1million. The class representative payment to plaintiff would be up to \$12,500 for each of the four plaintiffs. Attorney's fees would be \$1.938 million (38% of the settlement). Litigation costs would not exceed \$75,000. The settlement administrator's costs would not exceed \$30,000. PAGA penalties would be \$650,000. Because the LWDA notices in question were filed before June 19, 2024, the employees would receive a 25% share of PAGA penalties, or \$162,500. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about \$2.357 million (now estimated at \$2,480,599.74. The fund is non-reversionary. Based on the estimated class size of 3,310, the average net payment for each class